



PLANNING &
DEVELOPMENT
2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282
cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-26-36 / Frank Court - Vacation
Date: March 9, 2026

Background:

The item for consideration is a right-of-way Vacation. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- | | |
|-----------------------------|----------------|
| • Introduction and Referral | March 9, 2026 |
| • Public Services Committee | March 16, 2026 |
| • Second reading | March 23, 2026 |
| • Public Services Committee | April 6, 2026 |
| • Third and final reading | April 13, 2026 |

Planning Commission Recommendation:

The Planning Commission heard this item at their March 2, 2026, meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and unchanged.

Public Comment

As of the creation of this memo (March 3, 2025), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 16 views and no comments.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE VACATING FRANK COURT AND A SMALL SEGMENT OF A PREVIOUSLY VACATED ALLEY, NORTH OF ROCK SPRINGS STREET, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED EAST OF NORTH COLLEGE DRIVE AND NORTH OF ROCK SPRINGS STREET) ".

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City Right-of-Way (ROW) property described as Frank Court right of way as created on Sunnyside Addition 7th Filing Plat and the south half of the platted alley of Block 2, Ehernberger Subdivision, situated in a portion of Section 26 and 27, Township 14 North, Range 66 West of the 6th P.M., City of Cheyenne, County of Laramie, State of Wyoming is hereby vacated as shown on the attached Vacation Map.

Section 2. The vacation of the 28,506-square feet of undeveloped ROW is in the best interest of the City of Cheyenne and its residents.

Section 3. That said vacated right-of-way shall revert to the adjacent property owners pursuant to Wyoming State Statutes.

Section 4. The said vacated land shall have no easements, reservations or restrictions of record unless shown on the attached Vacation Map.

Section 5. The City Clerk is directed to record this ordinance, together with the Vacation Map, with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

Section 6. That the City Engineer's office is directed to change the Official City Map to reflect this vacation and also to change the Official Zoning Map, extending the existing zones of the abutting properties to the center line.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 8. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

27,789 SF TOTAL FRANK COURT ROW AREA TO BE VACATED

ABUTTING OWNERSHIP INTERESTS

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3562 BLUE BELL TR
CHEYENNE, WY 82007

8,955 SF ② JKM PROPERTIES LLC
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10,156 SF ③ CHEYENNE NORTH COLLEGE, LLC
2729 ASPEN WAY
BILLINGS, MT 59106

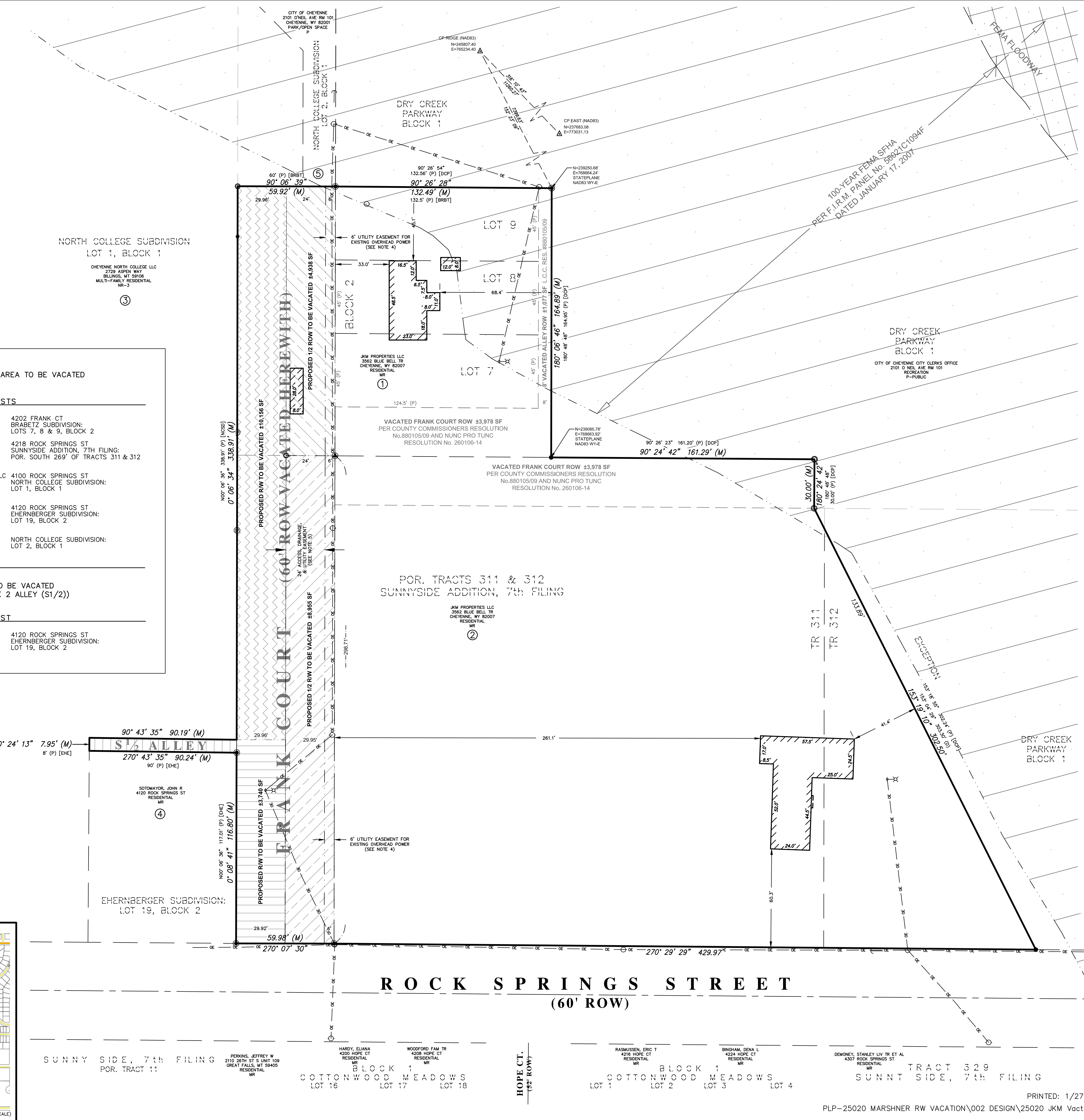
3,740 SF ④ SOTOMAYOR, JOHN R
4120 ROCK SPRINGS ST
CHEYENNE, WY 82001

SEE NOTE 3 ⑤ CITY OF CHEYENNE
2101 O'NEIL AVE. RW 101
CHEYENNE, WY 82001

717 SF TOTAL ALLEY ROW AREA TO BE VACATED
(POR. EHRNBERGER BLOCK 2 ALLEY (S1/2))

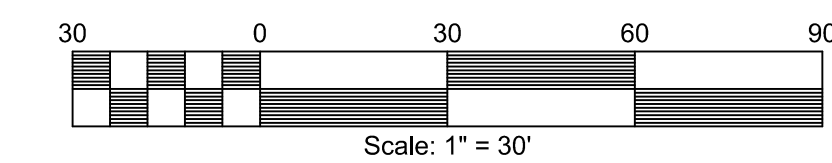
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717 SF ④ SOTOMAYOR, JOHN R
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LEGEND

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- FOUND 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
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- [SSA] DENOTES SUNNYSIDE ADDITION, 7th FILING
- [BRBT] DENOTES BRABETZ SUBDIVISION
- [NCSD] DENOTES NORTH COLLEGE SUBDIVISION
- [EHE] DENOTES EHRNBERGER SUBDIVISION
- - - EXISTING OVERHEAD ELECTRICAL, & POLE
- ⊕ EXISTING OVERHEAD LIGHT



APPROVALS

Approved by the City of Cheyenne Planning Commission
this ___ day of _____, 2026.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming
this ___ day of _____, 2026.

Mayor _____ ATTEST: City Clerk _____

GENERAL NOTES

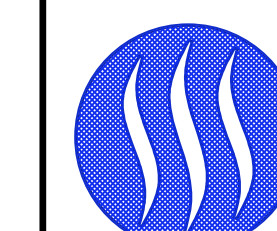
- BASIS OF BEARINGS: WYOMING STATE PLANE COORDINATES, EAST ZONE, NAD83-2011, US SURVEY FEET. GRID DISTANCES REFERENCED FROM CITY OF CHEYENNE CONTROL NETWORK POINTS EAST AND RIDGE. COMBINATION FACTOR = 0.999668393.
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- BY APPROVAL SIGNATURES AFFIXED HEREON, THE CITY OF CHEYENNE (ADJACENT LANDOWNER "S" ON THE NORTH SIDE OF THE VACATED AREA) ACKNOWLEDGES AND ACCEPTS FORFEITURE OF OWNERSHIP INTEREST REGARDING ACQUISITION OF ANY PORTION OF THE VACATED RIGHT-OF-WAY. TITLE TO THE AREA(S) TO BE VACATED IS TO BE CONVEYED IN EQUAL PROPORTIONS TO THE OTHER FOUR (4) ABUTTING OWNERSHIP INTERESTS SHOWN AND DESCRIBED HEREON.
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CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Licensed Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

VACATION MAP
FOR

ALL OF THOSE REMAINING PORTIONS OF FRANK COURT PUBLIC RIGHT-OF-WAY
ABUTTING LOTS 7, 8, & 9, BLOCK 2, BRABETZ SUBDIVISION,
AND LOT 1, BLOCK 1, NORTH COLLEGE SUBDIVISION,
AND TRACT 311, SUNNYSIDE ADDITION, 7th FILING,
AND
THE SOUTH HALF OF THE PLATTED ALLEY OF BLOCK 2, EHRNBERGER SUBDIVISION,
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 BLANCHARD ST. CHEYENNE, WY. 82201 • (307) 322-9789
www.SteelSurvey.com • info@SteelSurvey.com

CITY OF
CHEYENNE
— PLANNING & DEVELOPMENT —

CITY OF CHEYENNE PLANNING COMMISSION
MARCH 2, 2026
STAFF REPORT

FILE: PUDC-26-36: Frank Court (Street Vacation)

REQUEST: To vacate Frank Ct. north of Rock Springs Street, and the remaining south half of a small segment of a previously vacated alley.

LOCATION: East of North College Drive and north of Rock Spring Street.

APPLICANT: City of Cheyenne

AGENT: City of Cheyenne

PURPOSE: To remove an underutilized street that only goes to a single residence.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to approve the vacation of Frank Ct. north of Rock Springs Street and alley west of Frank Ct as shown on the attached vacation map, noting that the project meets the review criteria for approval, with conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.4 Street Vacation
- PlanCheyenne

BACKGROUND:

Frank Court was originally platted with Sunnyside Addition, 7th Filing in 1955. Since then, there has been several subsequent plats on either side of the platted road changing the layout of the land. Frank Court was not the original name of this section and it used to be a continuation of Monroe Avenue. Frank Court is not built to City street standards and is only used as access for two homes, one of which abuts Rock Springs Street.. This road will never extend to the north and is basically a large driveway. As right-of-way, the City could be considered the appropriate maintenance agency.

An east-west alley was once dedicated off of Frank Court, but later was vacated via a platting action. However, the owner next to the south half of the segment of the alley closest to Frank Court was not included in the plat, leaving the vacation status of the south half of that portion of alley ambiguous. This action also clearly vacates this potentially ambiguous right-of-way.

City Staff is petitioning the Planning Commission and Governing Body for this vacation, as not all landowners adjacent to this street are actively desiring vacation. The property owner to the east would like to replat and would like to own the portion they utilize. The Governing Body heard approved the preliminary plat of the property to the east, which plat requires this street to be vacated.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	---	---
North	Urban Residential, Open Space and Parks	NR – 3 Neighborhood Residential – High-density and P – Public	Open Space, Drainage
South	Urban Residential	MR – Medium-density Residential	Single-family
East	Urban Residential	MR	Single-family / Vacant
West	Urban Residential	NR-3 and MR	Single-family / Multifamily

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Street Vacation, the Commission must make the following findings required in UDC 2.2.4.d. A detailed analysis is below:

1) The vacation meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.4.d.1)

Article 4 of the Unified Development Code is generally silent on right-of-way vacations of roads outside of downtown. Article 4, Section 4.1.1.a of the UDC seeks to “ensure that all City blocks and lots are served by necessary infrastructure services, including utilities, transportation, storm drainage, public safety, and community facilities, but recognize that necessary service levels may differ based on the context, character, and intensity of development.” The right-of-way proposed for vacation does not serve as a connection, and utilities utilizing this right-of-way will have easements provided.

Article 4 also has minimum block size standards, and vacating a street could result in blocks which newly exceed these standards. This street does not provide any connections and Dry Creek and the development pattern of the neighborhood to the north makes any new connections that direction unlikely.

Vacation of the property **complies** with this criterion.

2) The ability of all existing and potential future development on adjacent lots to meet all applicable standards for development in the existing zoning district, including other development options in the event that any specific development proposed in association with the vacation is not executed after approval (UDC 2.1.4.d.2).

The proposed vacation is for an unbuilt street and does not substantively change the public-private interface. Only two properties utilize this street and it is used mainly as a driveway for each. One of the two is abutting Rock Springs Street. There will be an access easement granted to allow continued access to the parcel at the end of the street. The parcel closer to Rock Springs will receive half of the vacated street and will therefore be able to continue to use it as access to their property.

Vacation of the property **complies** with this criterion.

3) The vacation reflects sound planning and urban design principles with respect to existing potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities (UDC 2.1.4.d.3).

The proposed vacation does not eliminate any publicly dedicated connections. Only one lot needs to use this property as access. All other adjacent lots have access to Rock Spring Street. The area to be vacated has utilities, but a utility easement is proposed to be included with the vacation.

Vacation of the property **complies** with this criterion.

4) The application meets the public interest, and is not otherwise prohibited by other city, state, or federal laws (UDC 2.1.4.d.4).

The portion of the right-of-way proposed to be vacated serves four owners, only two really utilize the street and it is mainly used as their driveway. If built, the expectation would be for the public to be responsible for street maintenance (through the City).

Vacation of the property **complies** with this criterion.

5) The review and recommendations of other reviewing bodies (UDC 2.1.4.d.5).

The Board of Public Utilities made one comment regarding a main that they have stubbed up into Frank Ct along the western side that they would like an easement over or for the main to be abandoned and capped in Rock Springs.

There are minor technical corrections that need to be made to the map prior to recording.

Vacation of the property **complies** with this criterion, with conditions.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

PlanCheyenne designates this area as Urban Residential. The Plan also encourages responsiveness to market demands and the responsible extension of infrastructure. Utilizing the resources required for the typical street build-out, and utilizing City resources for continued City maintenance after construction would not be responsible at this location. The vacation of this area will not adversely impact the ability for property to be accessed for residential uses, and may allow the property more flexibility in development.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on February 14, 2026
- **Posted Notice** Evidence of posted notice was provided showing that the signs were posted on February 11, 2026.
- **Internet Posting** on connect.cheyennecity.org on February 12, 2026

As of the publication of the Staff Report (February 23, 2026), Staff has received one inquiry or comment from the public on this project. The inquiry was from the single-family property owner on the west side of Frank Ct about what this meant and if they would still be able to access their garage. The project page on the website has received 0 views and no comments.

STAFF REVIEW:

Staff review is covered by review criterion #5 (above).

CONCLUSION:

Staff analysis is that the application meets the review criteria and therefore recommends approval of street vacation with conditions.

ALTERNATIVES:

1. Recommend approval of the vacation as submitted by the applicant.
2. Recommend approval of the vacation subject to conditions or modifications (**Staff Recommendation**).
3. Recommend denial of the vacation based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the vacation until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

In the event that the Commission acts contrary to staff's recommendation or modifies recommended conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

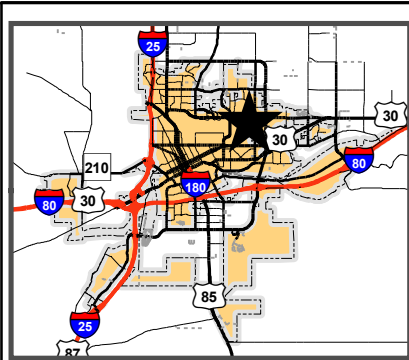
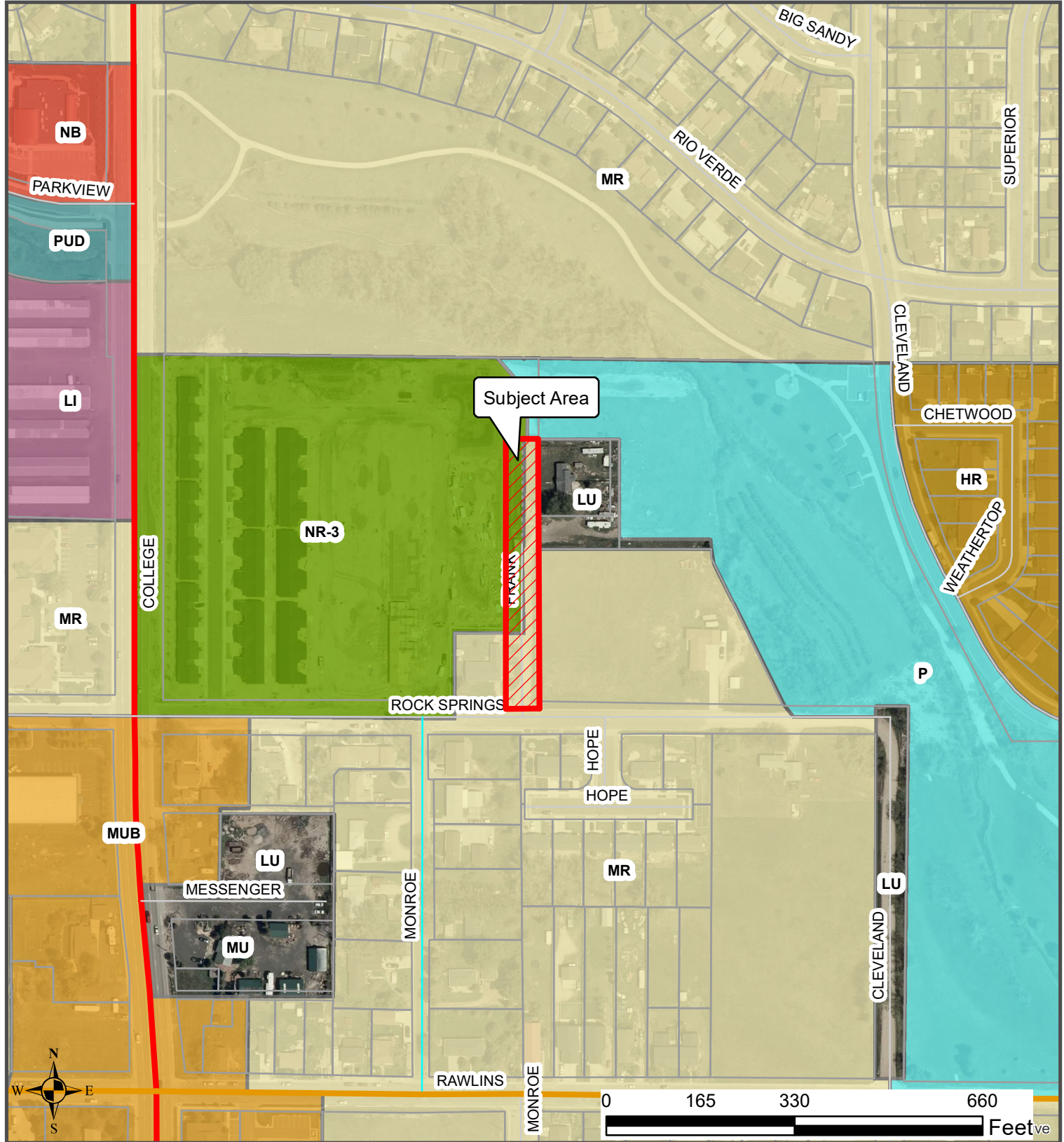
STAFF RECOMMENDATION:

Staff recommends approval of the vacation with the following conditions:

1. Prior to recording:
 - a. Add a BOPU easement over the existing main along the west side.
 - b. Make minor technical corrections.

ATTACHMENTS:

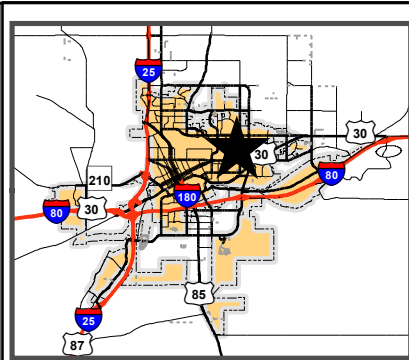
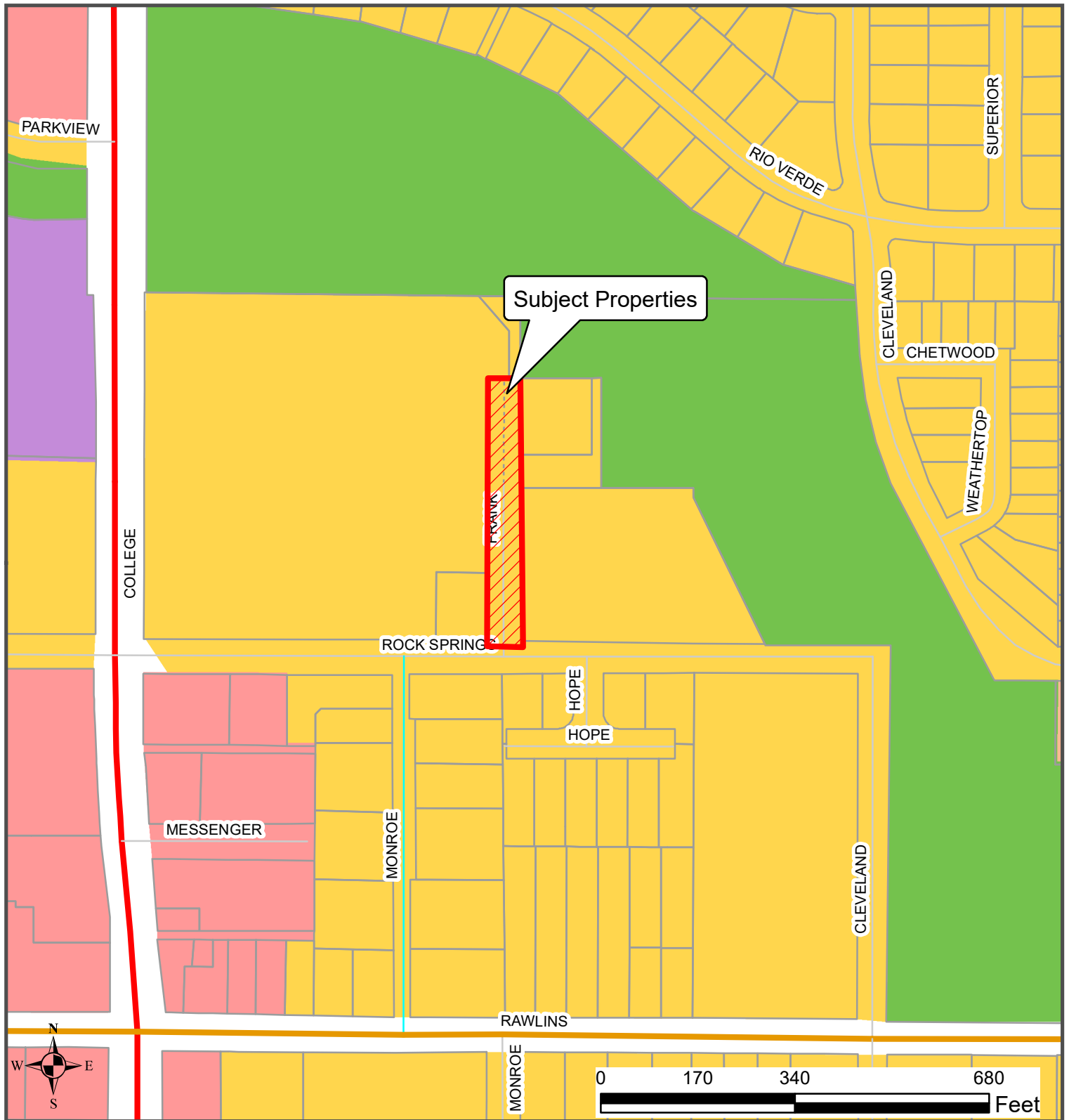
1. Zoning Map
2. Land Use Plan Map
3. Staff Petition
4. Vacation Map



Attachment 1: Zoning Map PUDC-26-36

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend	
	Nov19_CityLimits
	Interstate
	Principal Arterial
	Minor Arterial
	Major Collector
	Minor Collector
	Local
	Private
	Platted not built
	HR / High Density Residential
	MR / Medium Density Residential
	LR / Low Density Residential
	NR-2 / Neighborhood Residential - Med. Density
	NR-3 / Neighborhood Residential - High Density
	AR / Agricultural Residential
	A-1 / Agricultural and Rural Residential
	A-2 / Agricultural
	AG / City Agricultural
	MUR / Mixed Use Residential Emphasis
	CBD / Central Business District
	CB / Community Business
	NB / Neighborhood Business
	MU / Mixed Use - County
	MUB / Mixed Use Business Emphasis
	MUE / Mixed Use Employment Emphasis
	HI / Heavy Industrial
	LI / Light Industrial
	P / Public
	AD / Airport District
	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map PUDC-26-36

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



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March 9, 2026

Staff Petition for the Vacation of Frank Ct.

Dear City Council and Mayor of Cheyenne, Wyoming:

According to the Unified Development Code (UDC) an application for a Street Vacation may be initiated by:

- The City Council
- The Planning Commission or staff through a petition to the City Council
- The property owner(s)

Pursuant to this requirement, Staff hereby petitions City Council to vacate Frank Ct. as shown in the Staff Report and Vacation Map. This is a formal request.

All owners of land within 300' of the proposed vacation have been mailed notice of the vacation pursuant to the mailed notice requirements of the UDC.

Thank you,

Charles W. Bloom, AICP
Planning and Development Director

27,789 SF TOTAL FRANK COURT ROW AREA TO BE VACATED

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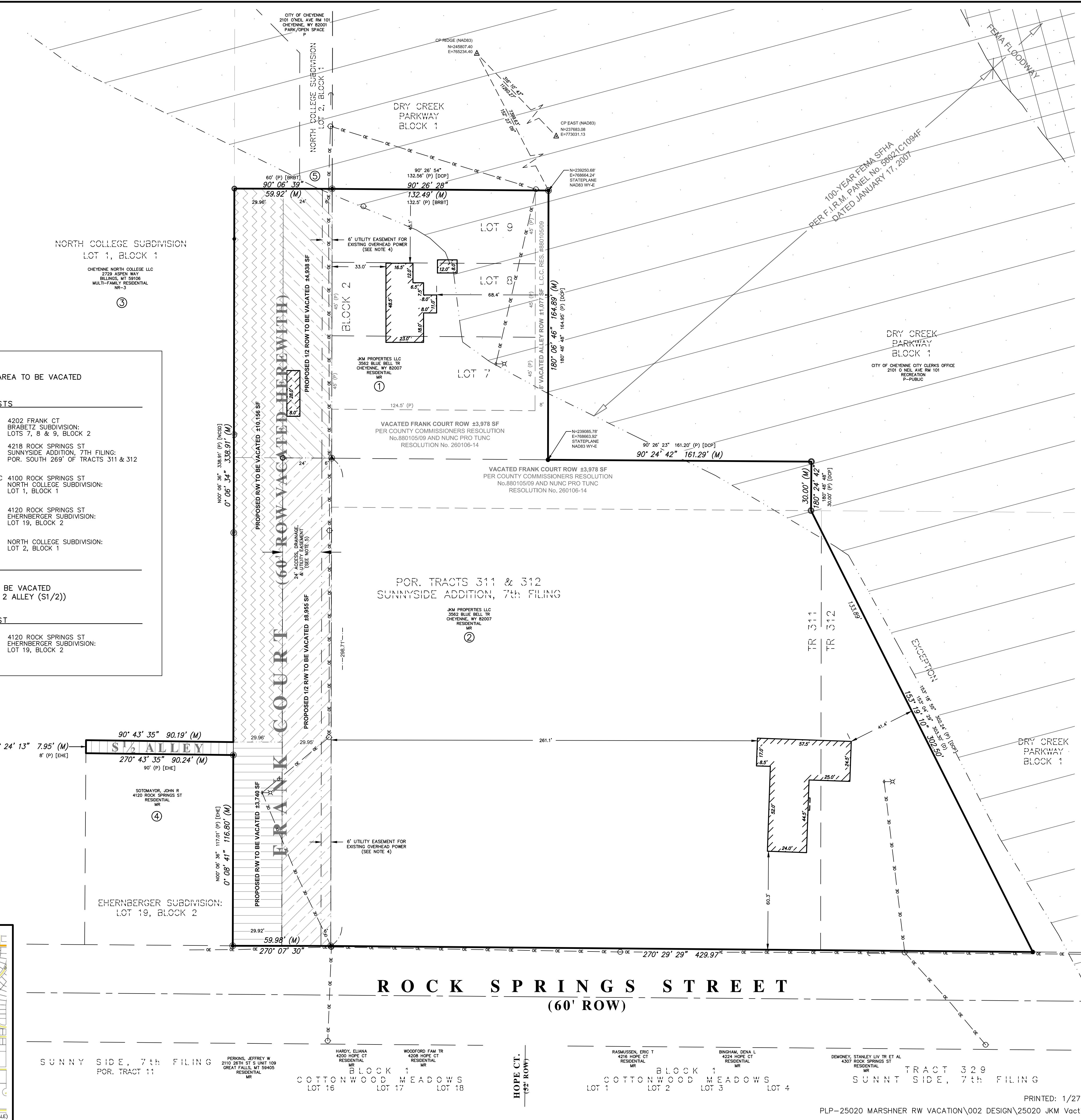
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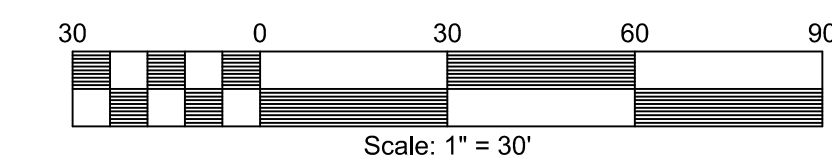
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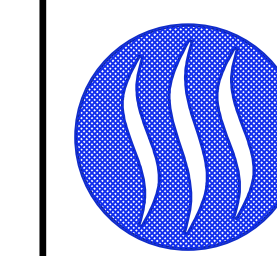
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PLP-25020 MARSHNER RW VACATION\002 DESIGN\25020 JKM VactionPlat